

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Carr	Team: Team # 6	CCRB Case #: 200905650	☐ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Thursday, 04/09/2009 7:26 PM	Location of Incident: 201 Street and Hollis Avenue	18 Mo. SOL 10/9/2010	Precinct: 103
Date/Time CV Reported Mon, 04/13/2009 6:38 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Mon, 04/13/2009 6:38 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mark Sinatra	28505	944174	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mark Sinatra	Off. Language: PO Mark Sinatra made remarks to § 87(2)(b) based upon race.	A . Complainant Uncooperative

Synopsis

§ 87(2)(b) made the following complaint in person at the 113 Precinct on April 13, 2009. It was received by the CCRB on April 14, 2009.

On April 9, 2009 at 7:25 PM in the vicinity of 201 Street and Hollis Avenue, Queens, § 87(2)(b) was pulled over by a police vehicle. Officer Marc Sinatra of the 113th Precinct approached the driver side window of his vehicle and asked for § 87(2)(b) license and registration, which he provided. There was a second officer who § 87(2)(b) had no interaction with. § 87(2)(b) asked why he had been pulled over and Officer Sinatra told him that it was for having illegally tinted windows. § 87(2)(b) then showed Officer Sinatra papers from a court case where he was found not guilty for having illegal tints on his window. Officer Sinatra dismissed the case as being too old. Officer Sinatra then measured the tints on the windows and allegedly said, "You niggers are gonna pay" (Allegation A). Officer Sinatra then issued § 87(2)(b) a ticket for having illegal tints on his windows. § 87(2)(b) asked for Officer Sinatra's name and shield number and he replied that that information was on the ticket. Officer Sinatra then drove away almost hitting § 87(2)(b). § 87(2)(b) identified Officer Sinatra by name and shield number based on the summons issued to him. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

The investigator called § 87(2)(b) and left messages on April 28 and 29, 2009. The investigator received a call from § 87(2)(b) on April 29, 2009 during which he provided a mailing address, but the line went dead before a phone statement could be provided. On May 1, 2009 a first call letter was sent to § 87(2)(b). On May 6, 2009 the investigator called § 87(2)(b) and spoke to his very briefly, but the line went dead before a phone statement was provided. On the same date the investigator called § 87(2)(b) and left a message. On May 6, 2009 § 87(2)(b) called the investigator and provided a phone statement, and an appointment was made for June 5, 2009. On June 5, 2009 § 87(2)(b) missed his appointment and a missed appointment letter was sent. On June 10, 2009 the investigator left a message for § 87(2)(b). On June 11, 2009 the investigator received a call from § 87(2)(b) and made an appointment for June 12, 2009. On June 12, 2009 § 87(2)(b) missed his appointment and a missed appointment letter was sent to his address. § 87(2)(b) has not attempted to reschedule his appointment by responding to the letter or the voice-message. It is therefore recommended that Allegation A be closed Complainant Uncooperative.

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: